

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erinn White	Team: Team # 3	CCRB Case #: 201200816	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 12/10/2011 12:15 AM	Location of Incident: in front of § 87(2)(b)	18 Mo. SOL 6/10/2013	Precinct: 46		
Date/Time CV Reported Thu, 01/19/2012 10:37 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 01/19/2012 10:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Pomerantz	10568	947364	046 PCT
2. SGT Albert Rodriguez	02441	933532	046 PCT
3. POM Nicholas Levesque	15044	944736	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Adam Acosta	19747	946719	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Pomerantz	Abuse: Officer Michael Pomerantz frisked § 87(2)(b)	A . Substantiated
B . SGT Albert Rodriguez	Abuse: Sergeant Albert Rodriguez supervised the search of § 87(2)(b)	B . Substantiated
§ 87(2)(g)	§ 87(2)(g)	

Case Summary

On January 19, 2012, § 87(2)(b) filed this complaint with the CCRB in person. On December 10, 2011, § 87(2)(b) was stopped by PO Michael Pomerantz, Sgt. Albert Rodriguez, and PO Nicholas Levesque of the 46th Precinct at § 87(2)(b) in the Bronx. The following allegations resulted from the encounter:

Allegation A – Abuse of Authority: Officer Michael Pomerantz frisked § 87(2)(b)

Allegation B – Abuse of Authority: Sergeant Albert Rodriguez supervised the search of § 87(2)(b)

§ 87(2)(g)

As such, it is recommended that **Allegations A and B** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who is § 87(2)(b). He has brown eyes and salt and pepper hair.

CCRB Statement

On January 19, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 6a-6e). On December 10, 2011, § 87(2)(b) exited § 87(2)(b) in the Bronx, where he had been visiting a friend, and began walking down the street. After § 87(2)(b) walked by approximately four houses on the same block, a black Chevy containing three white male officers in plainclothes stopped next to him. The officers, identified through investigation as PO Michael Pomerantz, Sgt. Albert Rodriguez, and PO Nicholas Levesque, exited the vehicle, which had its windows rolled up, and approached § 87(2)(b).

PO Pomerantz, asked § 87(2)(b) where he was coming from. § 87(2)(b) described PO Pomerantz as a white male who was 6'1" to 6'2" tall with a medium build. He could only describe the other two officers as white males. § 87(2)(b) replied that he was previously watching a basketball game at a friend's house. PO Pomerantz noted that § 87(2)(b) smelled like marijuana. § 87(2)(b) told PO Pomerantz that people had been smoking marijuana at his friend's apartment. As the two were talking, one of the other officers, PO1, approached § 87(2)(b) and took the backpack he was carrying. § 87(2)(b) could only described PO1 as a white male with a medium build. PO1 asked § 87(2)(b) if he had any

drugs or weapons in his bag. § 87(2)(b) denied having any drugs or weapons in the bag. PO1 then walked over to the vehicle with the bag and began searching it.

PO Pomerantz frisked § 87(2)(b) and then searched him. § 87(2)(b) was wearing a black velour sweat suit and sneakers; PO Pomerantz searched the two front pockets of § 87(2)(b)'s jacket and the two back pockets on his pants. § 87(2)(b) had a cell phone in each front jacket pocket and his wallet in one of his pants pockets; PO Pomerantz did not remove these items. § 87(2)(b) asked PO Pomerantz why he was being searched. PO Pomerantz replied that § 87(2)(b) had exited a high drug activity building and that he was at the wrong place at the wrong time. The officer who took § 87(2)(b)'s backpack returned it to § 87(2)(b) and showed him a one inch marijuana cigarette. The officer stated he found the cigarette in § 87(2)(b)'s bag. § 87(2)(b) did not know the cigarette was in his bag and told the officers he would have admitted to having it if he had known. § 87(2)(b) was placed under arrest. During the interaction, § 87(2)(b) discussed his basketball career § 87(2)(b)

While being transported to the 46th Precinct stationhouse, § 87(2)(b) again asked PO Pomerantz why he was stopped. PO Pomerantz replied that he had observed § 87(2)(b) § 87(2)(b). § 87(2)(b) denied this. After arriving at the stationhouse, § 87(2)(b) was taken to Bronx Central Booking due to a prior warrant. § 87(2)(a) 160.50

NYPD Statements:

Subject Officer: OFFICER MICHAEL POMERANTZ

- PO Pomerantz is a § 87(2)(b)-old white male who is § 87(2)(b). He has brown hair and brown eyes
- On December 10, 2011, PO Pomerantz worked a tour that began at 5:30 p.m. on December 9, 2011 and ended at 2:05 a.m. on December 10, 2011. He and his partners, PO Nicholas Levesque and Sgt. Albert Rodriguez, were dressed in plainclothes and assigned to Anti-Crime in an unmarked vehicle.

Memo Book

PO Pomerantz only noted the beginning and end of his tour in his memo book (encl. 7a-7b).

CCRB Statement

On May 10, 2012, Officer Michael Pomerantz was interviewed at the CCRB (encl. 8a-8b).

PO Pomerantz had very little independent recollection of the incident. He did not recall how many of his partners were involved in the incident, but noted that another officer processed § 87(2)(b) arrest. He recalled that § 87(2)(b) was arrested for § 87(2)(a) 160.50 but did not recall § 87(2)(b) or what § 87(2)(b) was doing during the time of observation. He recalled observing § 87(2)(b) from the van, but did not recall if the van was moving at the time. He did not recall if § 87(2)(b) was alone. He did not recall if § 87(2)(b) was holding anything, but believed he had a bag. He did not recall if § 87(2)(b) was recovered from § 87(2)(b). He did not recall if § 87(2)(b) was searched or frisked.

PO Pomerantz noted that his “on the street” interaction with § 87(2)(b) was very brief. He recalled that § 87(2)(b) was very tall § 87(2)(b). When shown § 87(2)(b)'s photograph, PO Pomerantz

stated that the individual in the photograph looked “pretty familiar”. He did not recall any statements made by § 87(2)(b) but recalled that he told § 87(2)(b) he would try and get him released on a Desk Appearance Ticket, for which § 87(2)(b) was grateful. PO Pomerantz did not recall if there was any trouble arresting § 87(2)(b) and stated that § 87(2)(b) did not appear “visibly aggravated” during the incident.

Subject Officer: SERGEANT ALBERT RODRIGUEZ

- *Sgt. Rodriguez is a § 87(2)(b)-old Hispanic male who is § 87(2)(b). He has black hair and brown eyes.*
- *On December 10, 2011, Sgt. Rodriguez worked a tour that began at 5:12 p.m. on December 9, 2011 and ended 2:12 a.m. on December 10, 2011. He and his partners, PO Michael Pomerantz and PO Nicholas Levesque, were dressed in plainclothes and assigned to Anti-Crime in an unmarked vehicle.*

Memo Book

At 12:20 a.m., § 87(2)(b) was placed under arrest at § 87(2)(b) (encl. 9b). 9a-

CCRB Statement

On June 26, 2012, Sergeant Albert Rodriguez was interviewed at the CCRB (encl. 10a-10b).

Sgt. Rodriguez recalled speaking to § 87(2)(b) § 87(2)(b). He described § 87(2)(b) as being “very nice”, but did not have any other independent recollection of the encounter. He recalled speaking to § 87(2)(b) in the stationhouse, but did not independently recall why § 87(2)(b) was arrested or the circumstances surrounding his arrest. He did not recall stopping any individuals during his tour, but noted that he assumed he had since he recorded arrests in his memo book. He did not recall the details of PO Acosta’s arrest.

Subject Officer: OFFICER NICHOLAS LEVESQUE

- *PO Levesque is a § 87(2)(b)-old white male who is § 87(2)(b). He has brown hair and brown eyes.*
- *On December 10, 2011, PO Levesque worked a tour that began at 5:12 p.m. on December 9, 2011 and ended 2:12 a.m. on December 10, 2011. He and his partner, PO Michael Pomerantz, were dressed in plainclothes and assigned to Anti-Crime in an unmarked vehicle.*

Memo Book

At 9:18 p.m. on December 9, 2011, PO Levesque was assigned an arrest as per PO Jimenez. He arrived at the 46th Precinct stationhouse at 11:15 p.m. His next entry notes his end of tour at 2:05 a.m. on December 10, 2011 (encl. 11a-11b).

CCRB Statement

On July 19, 2012, PO Levesque was interviewed at the CCRB (encl. 12a-12b). PO Levesque did not recall the incident. He did not recall interacting with § 87(2)(b) and did not recognize § 87(2)(b) when shown his photo during the interview. PO Levesque did not recall being involved in § 87(2)(a) 160.50. He did not recall interacting with a civilian § 87(2)(b) noting that such an interaction “would stick out”. PO Levesque noted that the last entry in his memo book for that day was at 11:20 p.m. when he was at the stationhouse with an arrest. He stated this arrest did not involve drugs and was from a prostitution set from earlier in his tour.

Witness Officer: OFFICER ADAM ACOSTA

- PO Acosta is a § 87(2)(b)-old Hispanic male who is § 87(2)(b). He has black hair and brown eyes.
- On December 10, 2011, PO Acosta worked a tour that began at 5:12 p.m. on December 9, 2011 and ended 2:12 a.m. on December 10, 2011. He and his partners, PO Angel Ayala and PO Primitivo Montanez, were assigned to conditions in prisoner van 8386 and dressed in plainclothes.

Arrest Paperwork

§ 87(2)(a) 160.50

Memo Book

At 12:20 a.m., PO Acosta receiving § 87(2)(b)'s arrest from PO Pomerantz (encl. 14a-14c).

CCRB Statement

On May 10, 2012, PO Adam Acosta was interviewed at the CCRB (encl. 15a-15b).

PO Acosta was at the stationhouse processing another arrest, when § 87(2)(b) was assigned to him by PO Pomerantz for processing. PO Pomerantz described the circumstances of the arrest to PO Acosta, but PO Acosta did not have any independent recollection of this information. PO Acosta's interaction with § 87(2)(b) mainly involved recording his pedigree information. PO Acosta vouchered § 87(2)(b) recovered from § 87(2)(b) but did not recall the amount recovered or what form it was in. PO Acosta was not involved in and did not observe § 87(2)(b)'s arrest or the circumstances leading up to it. § 87(2)(b) "look[ed] familiar" to PO Acosta when he was shown his photo during the interview.

NYPD Documents

Command Log

At 11:20 p.m. on December 9, 2011, arrests by PO Pomerantz, PO Levesque, and PO Acosta were entered into the command log and verified by Sgt. Rodriguez. At 12:30 a.m. on December 10, 2011, § 87(2)(b)'s arrest was entered into the command log (encl. 17a-17e).

Roll Call

According to the roll call, PO Levesque, Sgt. Rodriguez, and PO Pomerantz were assigned to Anti-Crime (they were all originally assigned to conditions). PO Acosta, PO Ayala, and PO Montanez were assigned to conditions in RMP #8386 (encl. 18a-18m).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 26, 2012, 11 months past the expiration of the 90-day filing period, with regard to the incident (encl. 24a-24b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4).

Subject Officers CCRB History

- PO Pomerantz has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 1).
- Sgt. Rodriguez has been a member of the service for nine years and there are two substantiated CCRB allegations against him. In CCRB case #201108436, the Board recommended charges for allegations of abuse of authority (frisk and vehicle search). Sgt. Rodriguez received instructions (encl. 2a-2b).
- PO Levesque has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 3).

Conclusion

Identification of Subject Officers

§ 87(2)(b) identified PO Acosta, whose name he obtained from his arrest paperwork, as the officer who frisked and searched him. He also stated that PO Acosta informed § 87(2)(b) that he was being arrested because § 87(2)(a) 160.50 § 87(2)(b) described PO Acosta as a white male who was 6'1" to 6'2" tall with a medium build. He described the other two officers as white males. PO Pomerantz acknowledged that he was the officer who observed § 87(2)(b) § 87(2)(b) Sgt. Rodriguez recalled speaking to § 87(2)(b) at the stationhouse, but did not recall the circumstances of his arrest. PO Levesque did not have any recollection of the incident. PO Acosta denied having any interactions with § 87(2)(b) outside of the stationhouse and was not present during § 87(2)(b)'s arrest. Officer testimony and documentation indicates that PO Pomerantz, PO Levesque, and Sgt. Rodriguez were assigned to Anti-Crime in one vehicle and PO Acosta, PO Ayala, and PO Montanez were assigned to conditions in a prisoner van. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Officer Michael Pomerantz frisked § 87(2)(b)

Allegation B – Abuse of Authority: Sergeant Albert Rodriguez authorized the search of § 87(2)(b)

§ 87(2)(b) § 87(2)(b) alleged that he was frisked and searched by PO Pomerantz and that an unidentified officer searched the bag he was carrying. According to arrest documentation and PO Acosta's testimony, PO Pomerantz stopped § 87(2)(b) after he observed him § 87(2)(b)

§ 87(2)(b). PO Pomerantz did not recall if § 87(2)(b) was frisked or if § 87(2)(b) and his bag were searched. Sgt. Rodriguez and PO Levesque did not recall the circumstances of § 87(2)(b)'s arrest or interacting with § 87(2)(b) prior to his arrest. § 87(2)(g)

In the course of an investigatory stop, a police officer may frisk the person if he or she has a reasonable suspicion that he or she is in danger of physical injury because the person is armed. People v. DeBour, AD N.Y. 2d 210 (1976) (encl. I.-XII.). An officer may only search an individual following a frisk if, during the frisk, the officer feels an object which could reasonably be mistaken for a weapon. People v. Hill, 569 N.Y.S.2d 227 (1991-4th Dept.) (encl.).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Consequently, it is recommended that **Allegations A and B** be closed as ***substantiated***.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) [Redacted]
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Team: _____

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Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date